

IN THE CIRCUIT COURT OF POPE COUNTY, ARKANSAS

3 DIVISION

AMY ANNETTE BUCK

AND

BRANDON BUCK

VS.

KIA MOTORS AMERICA, INC

CASE NO.:

580CV-20-339

PLAINTIFFS

DEFENDANTS

2020 AUG -4 PM 3:23

FILED

COMPLAINT

COMES NOW, the Plaintiff, Amy Annette Buck, by and through her attorney, LynMarie S. Liberty-Ellington of Liberty-Ellington Law & Mediation, PLLC with her Complaint hereby states:

1. That the Plaintiff, Amy Annette Buck, is a resident of Russellville, Pope County, Arkansas.
2. That the Defendant, Kia Motors America, Inc. is headquartered in Irvine, California.
3. That the Defendant, Kia Motors America, Inc. does ongoing business in Arkansas and the community of Russellville, AR.
4. That this court has jurisdiction over this matter and that it is the proper venue for this case.
5. That on or about May 20, 2015, the Plaintiff purchased a 2012 Kia Optima, VIN#5XXGN4A72CG033698 via an online website.

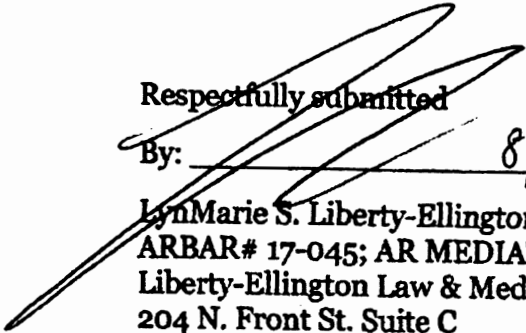
6. That on August 4, 2017, the Plaintiff and her son, Brandon Buck, travelled from Arkansas to Texas for a video game tournament and conference.
7. That on August 4, 2017, while the Plaintiff was driving her 2012 Kia Optima, the vehicle caught fire of the freeway in Plano, TX, was completely engulfed in flames, and ultimately consumed by the fire.
8. That the vehicle was a complete loss at the sight of the fire.
9. That the Plaintiff had video game equipment, photography equipment, and personal items in the vehicle at the time of the fire.
10. That Plaintiff alleges that the incident has led to losses of personal property and other non-property loss related issues.
11. That Plaintiff now suffers from chronic headaches requiring medication and time off of work.
12. That Plaintiff alleges emotional issues including but not limited to extreme stress and anxiety she alleges is and was caused from and/or exacerbated by the incident.
13. The Plaintiff alleges suffering from random panic attacks and flashbacks caused by the vehicle catching fire while she was in the vehicle.
14. The Plaintiff asks for compensation for her loss of personal property as well as pain and suffering, lost time at work, and damages to compensate for the ongoing effects of the vehicle fire.

WHEREFORE, the Plaintiff prays for damages, attorney's fees and costs, expenses, and all other remedies afforded to her by the Court that such Court deems necessary and proper.

Amy Annette Buck

Plaintiff

Respectfully submitted

By:  8/4/22

LynMarie S. Liberty-Ellington, MBA, JD
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AFFIDAVIT

In the Yell County)

In the AR State)

I, Amy Annette Buck, do solemnly swear that the above statements are true and correct to the best of my knowledge. In addition, I affirm that I am a resident of Russellville, Pope County, AR and I have been a resident of the state of Arkansas for more than 30 days before filing this suit.

Amy Buck
Amy Annette Buck (sign in front of Notary)
8-4-2020
Date

Jacob P. Belt
NOTARY

MY COMMISSION EXPIRES:
03-08-2028

08-04-2020
DATE

